

# The Border Security Force, Chief Law Officers and Law Officers Recruitment and Conditions of Service Rules, 1999

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The Border Security Force, Chief Law Officers and Law Officers Recruitment and Conditions of Service Rules, 1999

UNION OF INDIA

India

The Border Security Force, Chief Law Officers and Law Officers Recruitment and Conditions of Service Rules, 1999

Rule

THE-BORDER-SECURITY-FORCE-CHIEF-LAW-OFFICERS-AND-LAW-OFFICERS-RECRUITMENT-AND-CONDITIONS-OF-SERVICE-RULES-1999 of 1999

Published on 13 April 1999

Commenced on 13 April 1999

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[Note: The original publication document is not available and this content could not be verified.]

The Border Security Force, Chief Law Officers and Law Officers Recruitment and Conditions of Service Rules, 1999

Published vide Notification No. G.S.R. 260(E), dated 13th April, 1999

Ministry of Home Affairs

G.S.R. 260(E). - In exercise of the powers conferred by clause (n) of sub-section (2) of section 141 of the Border Security Force Act, 1968 (

47 of 1968

), and in supersession of the Border Security Force, Chief Law Officer and Law Officers Recruitment and Conditions of

Service Rules, 1977, except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Border Security Force, Chief Law Officers and Law Officers Recruitment and Conditions of Service Rules, 1999.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Number of posts, classification and scale of Pay.

- The number of posts, their classification and the scale of pay, attached thereto shall be as specified in columns (2) to (4) of the Schedule annexed to these rules.

3.

Method of recruitment, age-limit and other qualifications.

- The method of recruitment to the said posts, age-limit, qualifications and other matters relating thereto shall be as specified in columns (5) to (14) of the said Schedule.

4.

Disqualification.

- No person,-

(a)

who has entered into or contracted a marriage with a person having a spouse living, or

(b)

who, having a spouse living, has entered into or contracted a marriage with any person, shall be eligible for appointment to the said posts :

Provided that the Central Government may, if satisfied that such marriage is permissible under the personal law applicable to such person and the other party to the marriage and that there are other grounds for so doing, exempt any person from the operation of this rule.

5.

Seniority of Law Officers.

- Seniority of Law Officers shall be determined in accordance with the following rule, namely :-

(1)

All officers holding a higher rank whether in an officiating or substantive capacity shall be senior to officers holding the lower rank.

(2)

In a particular rank :-

(a)

An officer appointed in a substantive capacity shall be senior to an officer appointed in an officiating capacity;

(b)

Seniority of officers appointed to any post in a substantive capacity shall be determined in accordance with the date of appointment to that post in a substantive capacity and where two or more officers are appointed in a substantive capacity on the same date, their seniority shall be determined in accordance with their seniority while holding such posts in an officiating capacity;

(c)

Seniority of officers appointed to any post in an officiating capacity shall be determined in accordance with the order of selection for appointment to that post;

(d)

Seniority of officers promoted on the same date shall be determined in the order in which they are selected for promotion to that rank;

(e)

Seniority of re-employed officers in a particular rank shall be determined from the date of their reemployment in that

rank.

6.

Superannuation.

- The age of superannuation of the Chief Law Officers and the Law Officers shall be sixty years.

7.

Power to relax.

- Where the Central Government is of the opinion that it is necessary or expedient so to do, it may, by order, and for reasons to be recorded in writing, relax any of the provisions of these rules with respect to any class or category of persons.

8.

Saving.

- Nothing in these rules shall affect reservations, relaxation of age limit and other concessions required to be provided for the Scheduled Castes, the Scheduled Tribes and other special categories of persons in accordance with the orders issued by the Central Government from time to time in this regard.

9.

Appointment.

(a)

Officers who have completed their qualifying/eligibility service as contained in the Schedule annexed to these rules, shall only be considered for appointment to the grade(s):

(b)

Provided that only those officers who are in medical category SHAPE-I shall be eligible for appointment, on promotion, deputation, or re-employment basis:

Provided further that nothing contained in rule 9(b) shall apply to the officers holding the post on regular basis before the publication of these rules.

10.

Interpretation.

- If any question arises relating to the interpretation of these rules, it shall be referred to the Central Government for its decision.

Schedule

Name of the post

No. of posts

Classification

Scale of pay

Whether selection post or Non-Selection post.

Whether benefit of added years of service

admissible under rule 30 of the Central Civil Services (Pension)

Rules 1972.

Age limit for direct recruits.

Educational and other qualifications required for direct recruits.

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1.

Chief Law Officer

01\* (one) (1999)

General Central Service, Group "A".

Rs. 16,400-450-20,000/-

Selection by merit.

No.

Not applicable

Not applicable.

2.

Chief Law Officer (Discipline and Litigation)

01\* (one) (1999)

Gazetted, Non-Ministerial, (Combatised).

\*Subject to variation dependent on workload.

Whether age and educational qualifications prescribed for direct recruits will apply in the case of promotees.

Period of probation, if any.

Method of recruitment whether by direct recruitment or by promotion or by deputation or absorption and percentage of the posts to be filled by various methods.

In case of recruitment by promotion/deputation/ absorption, grades from which promotion/deputation/ absorption to be made.

If a Departmental Promotion Committee exists, what is its composition.

Circumstances in which Union Public Service Commission is to be consulted in making recruitment.

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14

Not applicable

Not applicable

By promotion failing which by deputation/ absorption/ re-employment.

1. By Promotion:(i) Serving Border

Security Force Law Officer Grade-I with five years of service as Law Officer Grade-I with a total of twenty years Group A' service.Note:1. The fitness of the existing

incumbent holding the feeder grade post with the requisite qualifying service for appointment to the upgraded post shall be considered by the competent authority and in case he is considered fit he shall be deemed to have been appointed to the next higher grade. In case he is not considered fit. his case shall be reviewed every year, till such time, he shall continue to hold the present post.2. If the present incumbent in the post has completed the requisite qualifying service for appointment to the upgraded post on or before the date of publication of this notification, he may be appointed to the upgraded post from that date. In the case of others who fulfil the qualifying service on a later date, they shall be appointed

to the upgraded post from the date on which they complete the qualifying service. This shall be subject to the condition that irrespective of the date of appointment the original seniority of the incumbent in the grade prior to up-gradation shall be maintained for appointment to the upgraded post.II. By Deputation/absorption:(i) An officer of the rank of Brigadier or equivalent in the Department of Judge Advocate General in the Armed Forces of the Union, with minimum 20 years of Group 'A' service.OR(ii) A Law graduate who is a member of the State Judicial Services for a period of not less than 20 years and holding the post of District Judge or an equivalent post.(iii) Failing (a) and (b), a Central/State Government Officer having degree in law and possessing legal experience of not less than 20 years and holding analogous post or post of Additional Legal Advisor/ Council or equivalent for a period of not less than 7 years.Note:-(Period of deputation including period of deputation in another ex-cadre post held immediately preceding this appointment in the same or some other organisation/ department shall ordinarily not exceed three years. The maximum age limit for appointment by deputation/ absorption shall be not exceeding fifty six years as on the closing date of receipt of applications).III. By re-employment :Retired/ Released officers of Army, Navy and Air Force, who had held analogous post in the rank of Brigadier or equivalent in the Department of Judge Advocate General with minimum commissioned service of 20 years, having break in service not more than two years

(1) Secretary, Ministry of Home Affairs-- Chairman(2) Director General, Border Security Force-Member(3) One of the Director General, from the Central Police Organisations be nominated by the Chairman?Member(4) Joint Secretary, Ministry of Home Affairs-Member(5) A Nominee of Department of Personnel & Training?Member Not applicable

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Law Officer Grade-I

08\* (Eight) (1999)

General Central Service, Group "A". Gazetted, Non-Ministerial (Combatised).

Rs. 14,300-400-18,300/-

Selection by merit.

No.

Not applicable

Not applicable.

\*Subject to variation dependent on workload.

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Not applicable

Not applicable

By promotion failing which by deputation/  
absorption/reemployment.

I. By Promotion

:(i) Serving Law Officer Grade-II with 09 years regular service as Law Officer Grade-II with a total of fifteen years group 'A' service. Note :-1. The fitness of the existing incumbent holding the feeder grade post with the requisite qualifying service for appointment to the upgraded post shall be considered by the competent authority and in case he is considered fit, he shall be deemed to have been appointed to the next higher grade. In case he is not considered fit, his case shall be reviewed every year, till such time, he shall continue to hold the present post. 2. If the present incumbent in the post has completed the requisite qualifying service for appointment to the upgraded post on or before the date of publication of this notification, he may be appointed to the upgraded post from that date. In the case of others who fulfil the qualifying service on a later date, they shall be appointed to the upgraded post from the date on which they complete the qualifying service. This shall be subject to the condition that irrespective of the date of appointment the original seniority of the incumbent in the grade prior to up-gradation shall be maintained for appointment to the upgraded post. II. By deputation/ absorption: (a) A law graduate holding the post of Second-in-Command or Commandant in Border Security Force with fifteen years of Group 'A' service and having atleast 8 years experience in legal affairs. OR (b) From suitable serving officers of Para Military Forces having an Act similar to Border Security Force Act 1968, Holding analogous post with minimum of 15 years Group 'A' service or officers in the grade of Rs. 12,000-16,500 with 4 years regular service in the grade and having 15 years of Group 'A' service having degree in law and 8 years experience in legal affairs. OR (c) An officer of the rank of Colonel or equivalent in the Department of Judge Advocate General in the Armed Forces of the Union, with minimum 15 years commissioned service. (d) Failing (a) to (c) from amongst suitable serving civilian officers of State/ Central Government holding analogous post with minimum 16 years of Group 'A' service or officers with at least 5 years regular service in the grade of Rs. 12,000-16,500 possessing atleast a degree in law and having experience in legal affairs in gazetted post for not less than 10 years. Note .-(Period of deputation

including period of deputation in another ex-cadre post held immediately preceding this appointment in the same or some other organisation/ department shall ordinarily not exceed three years. The maximum age limit for appointment by deputation/ absorption shall not be exceeding fifty six years as on the closing date of receipt of applications),(iii)

Re-employment:-Retired/ Released officers from Army, Navy and Air Force who had held analogous post before retirement, and possessing a degree in law with minimum 15 years of service and 8 years experience in legal affairs, having not more than 2 years break in service.

(1) Director General, Border Security Force,  
-Chairman.(2) Joint Secretary, Ministry of Home  
Affairs-Member.(3) One Inspector General, Border Security  
Force-Met(4) Chief Law Officer, Border Security Force-Member  
Not applicable

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Law Officer Grade-II

02\* (Two) (1999)

General Central Service, Group "A". Gazetted,  
Non-Ministerial (Combatised).

Rs. 10,000-325-15200/-

Selection by merit.

No.

Not exceeding 35 years

Essential:(i) Degree in Law.(ii) Six years

minimum experience in legal affairs,(iii) Should be

qualified for enrolment as an advocate.Desirable:(1) A post graduate Degree in Law.(2) 2 years

experience in dealing with trials under special laws relating to

Armed Forces.

\*Subject to variation dependent on workload.

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Not applicable

Two years in the case of direct recruits.

By deputation/ absorption failing which by direct  
recruitment.

By deputation/ absorption:(i) Serving

Border Security Force officers with graduation in Law and six

years Group 'A' service with minimum three years experience in legal affairs. OR (ii) A law graduate in Central/ State Government services holding analogous post and having not less than six years experience in legal affairs. (Period of deputation including period of deputation in another ex-cadre post held immediately preceding this appointment in the same or some other organisation/ department shall ordinarily not exceed three years. The maximum age limit for appointment by deputation/ absorption shall be not exceeding fifty six years as on the closing date of receipt of applications). Re-employment: Retired/ released officers from Army, Navy and Air Force who had held analogous post before retirement and possessing the qualifications prescribed under column (8), having break in service not more than two years.

(1) Director General, Border Security Force-Chairman  
(2) Inspector General Border Security Force-Member  
(3) Director/ Deputy Secretary Ministry of Home Affairs-Member  
(4) Chief Law Officer Border Security Force-Member

Not applicable

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